

Senate Intelligence bill gives holders of "non-earth origin or exotic UAP material" six months to make it available to AARO

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"We need to just look into whether there are rogue SAP programs that no one is providing oversight for. The goal for me will be to have a hearing on that at some point so that we can assess if these SAPs actually exist."— Senator Kirsten Gillibrand (D-NY), quoted in "UFO Whistleblower, Meet a Conspiracy-Loving Congress," by Matt Laslo, in *WIRED*, June 13, 2023.

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 on Twitter

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The U.S. Senate Select Committee on Intelligence (SSCI) has unanimously approved legislation containing language that appears intended to dig out any UAP-associated technology that is or ever was controlled by the federal government.

The new UAP/UFO provisions are being publicly reported in detail in this article for the first time anywhere.

In her opening remarks at her April 19 hearing on AARO, Gillibrand said, "Congress established AARO. We made it clear that we expect vigorous action...But despite our best efforts the President's budget for fiscal years '23 and '24 requested only enough funding to defray the operating expenses of AARO. It included almost no funds to sustain the critical research and development necessary to support a serious investigation. It took a letter to Secretary Austin [sic] from Senator Rubio and me and 14 other senators to get the office [AARO] temporary relief for the current fiscal year."

Following the conclusion of the Senate Armed Services Committee's closed-door voting sessions on the NDAA on June 22, Senator Gillibrand issued a press release (shown below) stating that "she had secured full funding" for AARO as part of the bill. The release did not provide any other specifics, and the bill language has not yet been released publicly. An summary of the NDAA released by the Armed Services Committee on June 23 also mentioned that the bill

"authorizes increased funding for...the activities of the All-domain Anomaly Resolution Office (AARO)."

The actual appropriation of funds for military and intelligence programs is conducted in a different bill, the annual Defense Appropriations bill, which originates in the Defense subcommittees of the Senate and House Appropriations committees. Generally, any program is most secure when it has strong advocates on both the pertinent authorization (policy and oversight) committees and on the pertinent appropriations subcommittees.

Press release issued by Senator Kirsten Gillibrand (D-NY) following conclusion of closed-door action by the Senate Armed Services Committee on the FY 2024 National Defense Authorization Act.

The new UAP provisions are part of the Fiscal Year 2024 Intelligence Authorization Act (IAA, S. 2103), which was approved unanimously by the Senate Intelligence committee in a closed-door session on June 14.

[On June 21 I reported on the committee's action](#), but the text of the UAP amendment was not yet publicly available at that time. The committee formally filed the bill and it was assigned its number on June 22; it was posted on the Internet early on June 24.

The new UAP language (found in Section 1104 of the bill) would require "any person currently or formerly under contract with the Federal Government that has in their possession material or information provided by or derived from the Federal Government relating to unidentified anomalous phenomena that formerly or currently is protected by any form of special access or restricted access" to notify the director of the All-domain Anomaly Resolution Office (AARO) within 60 days of enactment, and to provide within 180 days (six months) "a comprehensive list of all non-earth origin or exotic unidentified anomalous phenomena material" possessed and to make it available to the AARO director for "assessment, analysis, and inspection."

AARO is the Pentagon office established by Congress to conduct investigations of unidentified anomalous phenomena (UAP), and to collect information on current and past federal government activity pertaining to UAP.

The legislation also would require the AARO director to notify designated congressional committees and leaders within 30 days after receiving any such notifications, information, or exotic materials.

The Intelligence committee legislation also includes what might be called a "safe harbor" provision, providing that if such a person complies with the notification and make-available deadlines, "No criminal or civil action may lie

or be maintained in any Federal or State court against any person for receiving [UAP-related] material or information."

The "safe harbor" language might be read to imply that a private entity that obtained non-human technology from the government, and then held on to that material outside of the standard mechanisms for democratic oversight, perhaps profiting from it in some manner, might be in a legally tenuous position. If so, then such an amnesty period might smooth the way for timely and orderly disclosure. This reading of the provision is speculative; the committee has not yet published any explanatory material on the language.

Section 1104 of S. 2103 does not create any *new* criminal offenses. Neither does it confer any immunity for threats or acts of violence, perjury, or other crimes of the sorts sometimes alleged in stories about purported hidden government UFO programs.

A PDF file of the UAP-related section of the bill (Sec. 1104) is embedded immediately below this paragraph. Images of the seven UAP-related pages are inserted at the bottom of this article.

[UAP text S 2103 Intelligence Authorization Act](#)

The seven-page committee amendment that is now Section 1104 of the bill was sponsored by Senator Kirsten Gillibrand (D-NY). It was cosponsored by Senators Michael Rounds (R-SD), John Cornyn (R-Tx.), and Marco Rubio (R-Fl). The language was adopted by the 17-member committee without dissent (see roster below), after which the overall bill was approved unanimously.

Senator Kirsten Gillibrand (D-NY) sits on both the Senate Select Committee on Intelligence and the Senate Armed Services Committee. She chairs the Emerging Threats and Capabilities Subcommittee of the Armed Services Committee.

INTELLIGENCE COMMITTEE "NOTIFICATION" LANGUAGE IS BACKED UP BY SWEEPING FUNDING BAN FOR NON-COMPLIANCE

Besides the notification and make-available requirements for UAP-related information and hardware, S. 2103 contains a sweeping prohibition on any future direct or indirect funding for any special access program (SAP) activity related to *unidentified anomalous phenomena* (as that term is broadly defined in current law--see the box below), unless the program has been "formally, officially, explicitly, and specifically described, explained, and justified to the appropriate committees of Congress, congressional leadership, and the Director [of AARO]."

"Special access program" (SAP) refers to classified programs run by the military or certain other agencies, to which access is restricted to lists of specific persons, determined on a "need to know" basis. Within the Intelligence Community, a comparable program is referred to as a "controlled access program" (CAP). There are several different categories of SAP/CAPs, some more secret than others--but under statutes beefed up in recent years, every type of SAP/CAP is supposed to be reported to least a small number of designated members of Congress.

The definition of "unidentified anomalous phenomena" as revised by Public Law 117-263 (enacted December 23, 2022)— a definition which *includes* "transmedium objects or devices" as defined.

The designated "appropriate committees" are the intelligence, armed services, and appropriations committees of both houses of Congress.

"Congressional leadership" is defined as the Speaker and minority leader in the House of Representatives, and the majority and minority leaders in the Senate. A total of 58 senators and 137 House members hold the positions that the bill designates to receive such notifications.

The categories of activities covered by the prospective funding ban are defined in six expansive paragraphs, to include "any activities relating to," among other things, "Recruiting, employing, training, equipping, and operations of, and providing security for, government or contractor personnel with a primary, secondary, or contingency mission of capturing, recovering, and securing unidentified anomalous phenomena craft or pieces and components of such craft," and "managing and providing security for protecting activities and information relating to unidentified anomalous phenomena from disclosure." Also included is a broad range of activity related to reverse-engineering, including work on "any aerospace craft that uses propulsion technology other than chemical propellants, solar power, and electric ion thrust."

The UAP provision also contains a "Sense of Congress" subsection, which asserts that "due to the increasing potential for technology surprise from foreign adversaries and to ensure sufficient integration across the United States industrial base and avoid technology and security stovepipes...the Federal Government must expand awareness about any historical exotic technology antecedents previously provided by the Federal Government for research and development purposes."

A "sense of Congress" measure does not create substantive law, nor does it modify or limit the effect of any substantive provisions. "Sense of Congress" language merely provides an explanation or justification for substantive requirements. In this case, the stated justification seems to be that there is a compelling need for the U.S. government to step up its efforts to reverse-engineer any exotic technology that is within its reach, and the lawmakers have concluded that this requires a relaxation of some of the extreme secrecy controls that purportedly surround study of exotic technology.

The language seems in sync with past public claims by some persons purporting to have direct or indirect knowledge of UFO "crash retrieval" programs, who have asserted that such programs had made little progress over decades, because stringent secrecy has severely limited the scientific and engineering resources available to unravel the workings of devices or materials of purportedly non-human origin. Such claims were made, for example, by an unnamed military contractor quoted by Michael Shellenberger in a June 7, 2023 article titled, "[U.S. Has 12 or More Alien Spacecraft, Say Military and Intelligence Contractors](#)."

MORE UAP LANGUAGE COMING IN NATIONAL DEFENSE AUTHORIZATION ACT

Gillibrand's amendment on UFO-related special access projects has become public as part of the Intelligence Authorization Act, but the SAP issue may be addressed as well as part of a different bill, the FY 2024 National Defense Authorization Act (NDAA). In an interview reported by Matt Laslo of *WIRED* on June 13, Gillibrand said she would seek to add language to the NDAA cutting off funding for SAPs that are not properly reported to designated members of Congress. The Senate Armed Services Committee finished amending the NDAA on June 22, and then approved the bill on a vote of 24-

1, but the text of the bill approved by the Senate Armed Services Committee is not yet publicly available. On June 23 Senator Gillibrand issued a press release stating that she had "secured full funding" for AARO during the committee session; her release did not mention any other UAP-related matter. An executive summary of the committee-approved NDAA also mentioned "increased funding" for AARO.

The National Defense Authorization Act sets policy and authorizes programs for most components of the military. The Intelligence Authorization Act sets policy for the Intelligence Community, which involves 18 agencies, both military and civilian. For lawmakers supportive of putting more light on any hidden UAP-related programs, having compatible language in both bills is ideal, since the subject matter straddles both realms. Having both committees speaking in concert may also be helpful in prodding a recalcitrant bureaucracy.

As part of last year's National Defense Authorization Act, enacted in December 2022, [Congress mandated establishment of a "secure system"](#) by which anyone involved in a past or current UAP or alientech research program may file reports with AARO. Under this new law, anyone utilizing this "secure system" to disclose UAP-related information will not be violating classification laws or non-disclosure agreements, and will enjoy legal protection from reprisals by the government or government contractors.

The 2022 law also states that the Secretary of Defense must report to designated key lawmakers within 72 hours if he determines that "an authorized disclosure [under the new system] relates to" a previously unreported UAP-related special-access program.

In addition, the 2022 law requires AARO to prepare a comprehensive report to Congress on government involvement in UFO matters, going back to

January 1, 1945. The report is to include, among other things, "any program or activity that was protected by restricted access that has not been explicitly and clearly reported to Congress," and "any efforts to obfuscate, manipulate public opinion, hide, or other provide incorrect unclassified or classified information about unidentified anomalous phenomena or related activities." The report is due in June 2024. The law requires the Comptroller General, who heads the Governmental Accountability Office, an arm of Congress, to monitor the progress of the study and to periodically verbally brief designated lawmakers.

GRUSCH ALLEGATIONS BACKDROP FOR THE NEW SENATE COMMITTEE PROPOSALS

The new UAP initiatives in the Senate come in the wake of reports in the media, beginning on June 5, 2023, regarding allegations by David Grusch, who in April retired from a level GS-15 position (colonel equivalent) as an intelligence officer with the National GeospatialIntelligence Agency (NGA). Grusch's allegations were first reported in [an article that appeared on the website *The Debrief* on June 5](#), written by Leslie Kean and Ralph Blumenthal, and were elaborated on in interviews with journalist Ross Coulthart, broadcast on *News Nation*, and in other statements.

Grusch said that while assigned to the interagency UAP Task Force (a UAP-investigating body that preceded AARO), he received classified information from multiple "current and former senior intelligence officers" who said they were part of or had knowledge of a longstanding, highly secret program, which Grusch termed "a broad [UFO] crash-retrieval program." He said his sources told him that this program is engaged in attempts to reverse-engineer "quite a number" of "technical vehicles, call it spacecraft if you will" of non-human origin.

"The allegations themselves are breathtaking," Senator Brian Schatz (D-Hi.), a member of the Senate Appropriations Defense Subcommittee, told *WIRED*'s Matt Laslo. "It could be a game changer, or it could be a crank."

Kean-Blumenthal and Coulthart reported that Grusch initially reported on his findings to the Inspector General of the Department of Defense in July 2021, an action that Grusch later alleged somehow triggered various reprisals against him. The perpetrators of the alleged reprisals have not been publicly identified.

In May 2022, Grusch submitted a complaint to the Inspector General of the Intelligence Community (ICIG), employing a longstanding law, the *Intelligence Community Whistleblower Protection Act* (ICWPA) ((50 U.S.C. § 3033(k)(5)), which spells out a process for members of certain intelligence agency to report matters defined as being of "urgent concern," including serious violations of law, willful withholding of information from Congress, and some types of reprisals. The law requires that the Senate and House intelligence committees to receive notification of any "urgent concern" complaint, if the ICIG finds it to be "credible," which he did in this case; the committees were notified in July 2022.

Subsequently, staff persons to the two intelligence committees separately conducted extended sworn interviews of Grusch regarding his allegations. Grusch also provided sworn statements and classified information to the inspectors general. It appears that investigations into Grusch's disclosures are ongoing by both the ICIG and the Inspector General of the Defense Department.

Within hours of *The Debrief*'s initial report on Grusch's claims on June 5, 2023, Pentagon spokesperson Sue Gough issued this statement: "To date, AARO has not discovered any verifiable information to substantiate claims that any programs regarding the possession or reverse-engineering of extraterrestrial materials have existed in the past or exist currently. AARO is committed to following the data and its investigation wherever it leads. AARO, working with the Office of the General Counsel and the Air Force Office of Special Investigations, has established a safe and secure process for individuals to come forward with information to aid AARO in its congressionally-mandated historical review. AARO's historical review of records and testimonies is ongoing and due to Congress by June 2024. AARO welcomes the opportunity to speak with any former or current government employee or contractor who believes they have information relevant to the historical review."

In a statement to Christopher Sharp of *Liberation Times*, [published June 22](#), Gough stated: "AARO has been rigorously investigating alleged programs mentioned by individuals who have come forward as part of the congressionally-mandated historical review. To date, AARO has not been denied access to any United States government program, past or present, during the course of its work." Since David Grusch did not make his allegations "as part of the congressionally-mandated historical review," Ms. Gough's statement may not have applied to his allegations.

WHAT HAPPENS NOW WITH THE SENATE LEGISLATION?

Both the NDAA and the IAA still have many steps to go in the legislative process. However, ultimate enactment of an NDAA by the end of 2023 is a very good bet; Congress has enacted an NDAA for the past 62 years running.

In many years, the IAA is folded into the NDAA at a late stage in the legislative process, prior to the NDAA gaining final congressional approval and being sent to the president.

One open question is how the current leaders of the Intelligence and Armed Services committees in the House of Representatives will respond to the new Senate UAP proposals. Congressmen Michael Turner (R-Ohio) and Jim Himes (D-Ct.), who are respectively the chairman and ranking minority member on the House Permanent Select Committee on Intelligence (HPSCI), made generalized dismissive comments about the possibility of the government possessing secret alien technology, in a brief joint interview with *Fox News* on June 6 (see video clip below). They have said little if anything publicly on the matter since then. Their committee has not yet approved its version of the FY 2024 Intelligence Authorization Act.

On June 6, 2023, Congressmen Jim Himes (D-Ct.), left, and Michael Turner (R-Ohio), respectively the ranking minority member and the chairman of the House Permanent Select Committee on Intelligence (HPSCI), respond briefly to a question about the David Grusch story.

The senior members of the Armed Services Committee of the House of Representatives have said little publicly about the Grusch allegations. On June 22, that committee finished amending its version of the FY 2024 National Defense Authorization Act (H.R. 2670) and approved the bill 58-1. The committee-approved text is not yet publicly available, but no reports from the committee's voting session mentioned any UAP-related amendments, nor is any UAP-related language mentioned in a 15-page summary made available by the committee. However, UAP-related language could still be offered during consideration of the bill on the House floor, as occurred in 2022 when Reps. Mike Gallagher (R-Wi.) and Ruben Gallego (D-Az.) won adoption of a floor amendment to establish the "authorized reporting" system (a proposal that had been approved earlier by the SSCI).

Whether or not there are any UAP-related provisions in the versions of the NDAA and IAA that the full House initially passes later this year, the inclusion of UAP-related provisions in the bills approved by the two Senate committees would mean that final UAP language will be worked out in a House-Senate conference committee or other closed-door, bicameral negotiations that occur near the end of the legislative process, probably late in the year.

POTENTIAL CONGRESSIONAL HEARING(S)

Under ordinary procedures, there would be no expectation that negotiations on the final shape of NDAA-IAA provisions pertaining to UAP would involve the leadership of the House Committee on Oversight and Accountability. To date, however, that is the only House committee that has announced that it intends to hold a public hearing on the subject.

On June 6, House Oversight Chairman James Comer (R-Ky.) told *News Nation* that he had tasked two members of that committee, Reps. Tim Burchett (R-Tn.) and Anna Paulina Luna (R-Fl.), to put together a public hearing on the subject. In an interview with Frank Camp published on *DailyWire.com* on June 17, 2023, Burchett said that he was hoping that Grusch would be able to testify at the hearing: "We would like to get him there. It's premature to say who we will have there. We'll release that when we get the okay from the committee chair of everybody that we've invited who's been cleared to come speak...I want to talk to people who have seen something and can provide some proof of what's going on." No timetable has been announced for the House Oversight Committee hearing.

Senator Gillibrand chairs the Emerging Threats and Capabilities Subcommittee of the Armed Services Committee. In remarks to Matt

Laslo of *WIRED*, reported on June 13, Gillibrand said she wanted to "have a hearing at some point so that we can assess if these SAPs actually exist." Asked by Laslo whether she thought there was veracity to Grusch's claims, Gillibrand said "I have no idea. So I'm going to do the work and analyze it and figure it out."

On April 19, 2023, Gillibrand's subcommittee held both a closed (classified) hearing and an open hearing on AARO, at which AARO Director Dr. Sean Kirkpatrick was the sole witness. During that hearing, Kirkpatrick said, "I should also state clearly for the record that in our research AARO has found no credible evidence thus far of extraterrestrial activity, off world technology, or objects that defy the known laws of physics. In the event sufficient scientific data were ever obtained that a UAP encountered can only be explained by extraterrestrial origin, we are committed to working with our interagency partners at NASA to appropriately inform U.S. government's leadership of its findings."

A provision of the 2022 law establishing AARO reads as follows: "50 U.S.C. Sec. 3373(f)(1)(A): Availability of data: The Director of National Intelligence, in coordination with the Secretary of Defense, shall ensure that each element of the intelligence community with data relating to unidentified anomalous phenomena makes such data available immediately to the Office" [i.e., AARO].

In a statement to Christopher Sharp of *Liberation Times*, [published June 22](#), Gough said, "By law, AARO may receive all UAP-related information, including any classified national security information involving military, intelligence, and intelligence-related activities, at all levels of classification regardless of any restrictive access controls, special access programs, or compartmented access programs. Moreover, there is no restriction to AARO

receiving any past or present UAP-related information, regardless of the organizational affiliation of the original classification authority within DoD, the Intelligence Community, or any other U.S. government department or agency.”

In an interview with journalist Ross Coulthart, broadcast by *News Nation* on June 11, Grusch said, "Well, I know Dr. Sean Kirkpatrick. I've known him about eight years. And, you know, I expressed some concerns to Dr. Kirkpatrick about a year ago, and told him what I was starting to uncover. And he didn't follow up with me. He has my phone number. He could have called me. I hope he ultimately does the right thing. He should be able to make the same investigative discoveries I did. It's totally crazy if he doesn't."

[Kirkpatrick SASC hearing transcript 4 19 23](#)

SENATORS ACT TO BEEF UP FUNDING FOR AARO

On February 16 a bipartisan group of 16 senators – including Gillibrand, SSCI ranking minority member Senator Marco Rubio (R-Fl.), and SSCI Chairman Senator Mark Warner (D-Va.) -- [sent a letter](#) to the second ranking officials at the Department of Defense and in the Office of the Director of National Intelligence, urging support for more robust funding for AARO, and raising questions about the pace at which the Pentagon bureaucracy has implemented some of the AARO-related mandates enacted in December, 2022.